CITY OF OPA-LOCKA
"The Great City"

CLERK'S ACTION SUMMARY MINUTES
REGULAR COMMISSION MEETING
September 9, 2009
7:00 P.M.
City Commission Chambers
777 Sharazad Boulevard
Opa-locka, FL 33054

1. CALL TO ORDER:

Mayor Joseph L. Kelley called the meeting to order at 7:04 p.m. on Wednesday, September 9, 2009 in the City Commission Chambers, 777 Sharazad Boulevard, Opa-locka, Florida, 33054.

2. ROLL CALL:

The following members of the City Commission were present: Commissioner Dorothy Johnson, Vice Mayor Myra L. Taylor, Commissioner Rose Tydus, Commissioner Timothy Holmes and Mayor Joseph L. Kelley. Also in attendance were: Interim City Manager Bryan K. Finnie, City Attorney Burnadette Norris-Weeks, and City Clerk Deborah S. Irby.

3. INVOCATION:

The Invocation was delivered by Mayor Joseph L. Kelley.

4. PLEDGE OF ALLEGIANCE:

The Pledge of Allegiance was recited in unison.

5. APPROVAL OF AGENDA:

6. APPROVAL OF CONSENT AGENDA AND PULL LIST (deferrals and deletions):

Request to amend the agenda of the Regular Commission Meeting of September 9, 2009 to include the following resolutions:

12-1: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RATIFYING THE ACTION OF THE CITY MANAGER AND AUTHORIZING RAINBOW ENTERPRISES, INC. TO REMOVE DEBRIS RELATED TO THE DEMOLITION AND CLEARANCE OF THE OLD CITY WATER PLANT IN THE AMOUNT OF TWENTY ONE THOUSAND NINE HUNDRED AND THIRTY

DOLLARS ($21,930.00) PAYABLE FROM ACCOUNT NO. 32541520. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include the above resolution as item 12-1.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

12-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RESCINDING ALL UNAUTHORIZED BONUSES TO CITY STAFF FROM OCTOBER 1, 2008 THROUGH SEPTEMBER 30, 2009 AND FURTHER DIRECTING THE INTERIM CITY MANAGER TO SEND DEMAND LETTERS TO CITY STAFF FOR THE RECOVERY OF UNAUTHORIZED UNBUDGETED CITY FUNDS AND HOLD PERSONALLY RESPONSIBLE FOR THE DISTRIBUTION. *Sponsored by D.J.*

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to amend the agenda to include the above resolution as item 12-2.

There being no discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

The listed resolutions were pulled from the consent agenda to be discussed separately under Action Items: 15-6 and 15-10 (Johnson) and 15-4, 15-5, 15-6, 15-7 and 15-10 (Holmes).

Commissioner Holmes requested an amendment to agenda item 14A1 – First Reading Ordinance so that it includes sewer only as oppose to water and sewer.

Attorney Weeks suggested that the amendment to the ordinance take place at the time when the Commission is addressing the ordinance.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the agenda, consent agenda and pull list.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

7. AWARDS/PROCLAMATIONS/ACKNOWLEDGEMENTS:

Mayor Kelley inquired about the Employee of the Month program which the city had not done for some time.

Manager Finnie stated that the Employee of the Month process was abandoned for a while but will move forward in the near future.

8. APPROVAL OF MINUTES:

Regular Commission Meeting – July 22, 2009
Special Commission Meeting – July 30, 2009

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to approve the minutes of the Regular Commission Meeting of July 22, 2009 and the Special Commission Meeting of July 30, 2009.

There being discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Mayor Kelley	Yes

9. DISTRICT ONE - COUNTY COMMISSIONER REPORT:

10. PUBLIC PRESENTATION:

1. Dr. Philip H. Mann, Professor and Director of the Entrepreneurial Institute at Barry University came forward and publicly thanked the Commission and City Clerk for providing space at City Hall to offer their services. He further provided an overview of the services offered as funded by the Miami-Dade County Office of Community and Economic Development (OCED) which are available to the residents of Miami-Dade County at no cost.

2. Shaun Davis, Managing Partner, S. Davis & Associates, Inc., 160 NW 176 Street, Suite 400, Miami Gardens, Florida came forward and thanked the city for the opportunity of doing business with them. He presented the findings of the Independent Audit Report for the Curtiss Drive Neighborhood Improvements.

Commissioner Johnson asked about the resolution mentioned by Mr. Davis for PAWA as to whether the work was done prior to the resolution being approved.

Mr. Davis responded, yes.

Commissioner Johnson asked, what was the total amount in the resolution?

Mr. Davis said the total was $160,000.00 and the prior authorization was for $147,200.00 which was a difference of $12,800.00.

3. Carmen Felipe of 1210 Wilmington Street, Opa-locka, Florida, appeared before the City Commission and requested approval for Stop the Violence Roadside Marker in memory of her late son Richard who was murdered with a gun. This roadside marker would be located on Dunad Avenue and it would be at no cost to the city.

Although Commissioner Johnson was in support of the roadside marker, she requested that the City Attorney prepare a resolution which should be sponsored by Mayor Kelley.

Mayor Kelley directed the City Attorney to bring back a resolution to address the roadside marker.

4. Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, came forward and expressed his concerns relating to the Planning Council not meeting and the firm hired for planning services not providing those services for which they were hired; however, they are performing other services for the Public Works Department. He also spoke about the train blowing the horn during the early morning hours and before when the city had a real City Attorney, they dealt with the issue by contacting CSX; however, now that the city is a client of a firm, it doesn't get that attention. He asked for an update on the amount of money the city received back from the police officers who left after receiving the bonuses.

He continued by saying that the citizens elected the Commission to represent the city and their loyalty should be to the citizens of Opa-locka.

He further stated that this is the most the city has paid a City Attorney and they can't even get simple lawsuits settled or recover money that individuals stole. Also, the company hired for planning services, the Planning Council has yet to meet with them; but they are doing plans now for the water & sewer over at public works.

Mayor Kelley addressed Mr. Burke's concern not only about the noise from the trains but from the planes at the airport as well. He said that the City Manager was to provide Mr. Burke with a copy of the report in terms of the city getting back the bonuses from previous police officers that have since left.

In terms of recovering monies from the police officers who received bonuses, Manager Finnie advised that there are legal proceedings taking place to address that matter.

Mayor Kelley said he had asked that the City Manager follow up with a response to those citizens that come before the Commission with concerns to keep them updated so that the citizens don't think they are being ignored.

Both Manager Finnie and Attorney Weeks provided an update on the issues with recovering the bonuses from former police officers. Attorney Weeks said she had a number of things she could respond to that Mr. Burke stated inaccurately and she would be happy to do so if the Commission would entertain that.

Mayor Kelley said he just wanted to get an answer to the question.

Commissioner Johnson expressed her concern about the remarks made regarding the firm hired which is now working in the Public Works Department because originally that firm was hired to provide planning services relating to the Planning Council.

Manager Finnie explained that a Planning Council meeting was scheduled prior to August and there was a lack of quorum; therefore, the Planning Council went into break for the month of August. The city will ask the consultants to be present at the next scheduled Planning Council meeting. The first meeting scheduled was more of an organizational meeting and staff made the decision to not invite the consultants because of the hourly fee.

Commissioner Johnson asked, is this a consultant? She said perhaps she should be asking the City Attorney since she recommended this individual.

Attorney Weeks responded no, absolutely not. She said there was an RFP process and through the RFP process staff selected, of which she had nothing to do with, this vendor.

Commissioner Johnson said she is concerned about the city making all of these decisions and not including the members of the Planning Council.

Manager Finnie stated that it is his understanding the meeting cannot be called unless the chair calls the meeting and coordinates the agenda.

Commissioner Johnson suggested that all members of the Planning Council receive updates and information as to what is taking place so that they are in tune.

Commissioner Tydus said she was glad to hear the clarification relating to the Planning Council and its meeting dates because Mr. Burke has been before the Commission on numerous occasions complaining about the fact that the Planning Council was not meeting. However, according to the Code of Ordinances, the Planning Council does not meet on a regular scheduled time but on an as needed basis and when that need does occur then they adhere to the regular meeting time as stated in the code. The administration is not slacking in any way, there just hasn't been any issues warranting the Planning Council to meet. She expressed her concern relating to the display of disrespect in how they address one another and said she was disappointed to hear the City Attorney being referred to as not being "a real City Attorney" which sounds like she's not

qualified. Also, after hearing the allegations, she is disappointed that the individual is not giving an opportunity to defend themselves which is not right.

Commissioner Holmes said the citizens have the right to come forward and express their concerns.

Mayor Kelley said he asked the City Attorney not to speak at the moment because he would allow her the opportunity during the City Attorney's report.

10a. CITIZENS' FORUM:

1. Irma Skiles of 14261 NW 23rd Court, Opa-locka, Florida, appeared before the City Commission and publicly thanked the Public Works Department working under the jurisdiction of this administration for installing new sidewalks and planting grass where it was much needed. She expressed her personal opinion on this administration for wanting to move the Commission Chambers from the present site to another location. She said she along with other citizens do not agree with relocating the Commission Chambers because it is an ancient and viable center which has enhanced the growth of the population to where it is today.

2. John Gregory of 1056 Jann Avenue, Opa-locka, Florida, expressed his concerns relating to the unemployment problems that seem to be worsening. He asked for the city's future plans for creating new jobs? Also, he spoke to employees from the Public Works Department who felt their jobs were in jeopardy.

He further commended the city for making the city beautiful and clean.

In terms of the concern about employees from the Public Works Department who felt their jobs were in jeopardy, Mayor Kelley said he didn't anticipate the city laying off any staff in the upcoming proposed budget; however, there is a hiring freeze at this time. In terms of the stimulus dollars, he said there are some projects coming down the pipe line related to the stimulus and he is pretty sure there would be job opportunities that come along with it. In the short term, he suggested that Mr. Gregory visit the city's website for links to other job opportunities and contact FIU who would be hiring.

3. Sylvia Daughtrey, Director of Youth Co-Op, 780 Fisherman Street, Opa-locka, Florida, came forward and thanked the city for their continuous support throughout the years and as the only service provider in Opa-locka, she requested assistance for continuation of services within Opa-locka.

Commissioner Johnson said the city was unable to contribute last year but she would get with the City Attorney and City Manager to bring back a resolution to assist Youth Co-Op.

4. Alvin Burke of 540 Sharar Avenue, Opa-locka, Florida, appeared before the City Commission and clarified his statement made earlier under public presentation where he indicated that the city didn't have a "real" City Attorney. Although he meant no

disrespect to anyone, he made that statement based on the fact that the city doesn't have its own City Attorney. The city is a client of the City Attorney's firm.

He further went on to speak about Calvin, Giordano & Associates, Inc. who was hired for the Planning Council and ended up doing work for the Public Works Department.

5. Johnnie Greene of 2091 Johnnie Mae Greene Street, Opa-locka, Florida, came forward and commended the Chief of Police, Assistant Chief Cason and the fine women and men of the police force for their tireless work in the community. She expressed her concerns relating to Power Supermarket being allowed to re-open; the amount of monies being paid out to the current law firm serving as the City Attorney; the need for an in-house City Attorney as stated in the Charter; and the maintenance of alleyways and beautification which has gone down.

6. Claudienne Hibbert, Monsignor Edward Pace High School, 15600 NW 32 Avenue, Miami, Florida, appeared before the City Commission on behalf of Pace's High School Basketball program to request sponsorship to be applied towards the team expenses.

7. Deborah Irby of 14202 NW 17 Avenue and 2211 Rutland Street, Opa-locka, Florida, expressed her disappointment in terms of Power Supermarket being reopened in light of the criminal activity taking place at that location. She suggested that the city follow its procedures pursuant to Section 13-34 of the City of Opa-locka Code of Ordinances to deal with this issue.

Commissioner Johnson said was concerned in hearing citizens and violations being committed and the city turns it head like they don't know what's going on because even the owner of Power Supermarket was killed in the store. There are schools opening with no licenses and yesterday at the workshop she was told the city would make $250.00 off of liquor licenses but none of the liquor stores have closed. As a matter of fact, grocery stores sell liquor. The City Commission has voted on one of the largest legislations they have had in this city and it must be enforced.

Mayor Kelley suggested that the City Commission wait until the City Manager's Report to address their concerns in order to get into an open dialogue because he has concerns about the same issues that were raised.

11. ACTION ITEMS (items from consent agenda pull list):

4. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, APPROVING THE SETTLEMENT AGREEMENT IN THE MATTER OF CITY OF OPA-LOCKA VS. BELLSOUTH COMMUNICATIONS, INC., AND AUTHORIZING THE CITY MANAGER TO ACCEPT PAYMENT FROM SAID DEFENDANT IN THE TOTAL AMOUNT OF SEVENTY FIVE THOUSAND DOLLARS ($75,000.00), AS FULL AND FINAL SETTLEMENT OF ALL CLAIMS AND DISMISSAL. *Sponsored by C.A.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

Commissioner Holmes asked for further clarification on the above matter.

Attorney Weeks explained that this was a settlement due to a mediation that took place and there was an executive session wherein the City Commission in total was briefed on the matter. After the mediation, there were so many days that determined where the city was in on it and whether the city would be in favor of the settlement agreement. Basically, this was a suit were the statute of limitations had run years ago. She said she did make some other overtures which had Bellsouth put some money on the table. Additionally, there were some other issues in that the city didn't have the proof for some of the things they thought they had the proof for. The city did file a lawsuit just as a placeholder based on one of the documents that was in the city files which seemed to suggest there was additional time; but after getting to the mediation it was realized that those documents were not there. She recommended that the City Commission approve the settlement agreement in the amount of $75,000.00 because the city is very fortunate to get anything on the table based on the fact that the statute of limitations had run.

During the mediation, Commissioner Holmes asked whether there was a point in time when the order was written up and the City Attorney had a certain period of time to bring it to the Commission for acceptance, if not, the City Attorney could take the order back and move further on it.

Attorney Weeks stated that nothing had been signed; however, they did leave on the table an offer with a number of days for the city to accept and she and the City Manager polled the Commission. She said that Commissioner Holmes' thought during the executive session was that the city should run with that offer. During the course of the mediation, they evaluated a number of different factors and she believes the city is very fortunate to get any offer out of Bellsouth on this issue.

Commissioner Holmes recalled his statement during the executive session saying that the City Attorney should attempt to get as much of the $200,000.00 as possible.

He expressed his frustration about not being provided any documentation relating to the $75,000.00 offer or any other options the city may have had to renegotiate. He said he is upset about this issue because the entire truth is not being told.

Mayor Kelley recalled the initial conversation when the Commission thought the city was going to get more than the $75,000.00 and he remembers when the City Attorney spoke to him one on one that in her opinion the $75,000.00 was the most the city could get because of the circumstances. He asked the City Attorney if she was able to locate any other documentation that would suggest otherwise.

Attorney Weeks said she was unable to find anything. She met with the Finance Department, talked to staff, took people from Finance with her to the mediation and there

is nothing to support anything more than that. The overwhelming largest issue is that the statute of limitations has run.

Mayor Kelley asked, was the $75,000.00 offer the best that the city could do?

Attorney Weeks replied, yes.

Commissioner Johnson said it was brought to her attention that there was suppose to be videos or cameras. She asked, was any of this information shared so that the City Attorney could have supported documentation?

Attorney Weeks stated that she took pictures and everything available; however, the issue was not that the pipe was cracked but when it was cracked and how it happened.

Commissioner Tydus said she didn't think the Commission needed to downplay the Statute of Limitation because it had passed, the city didn't have any grounds for an audience of any type. Just to get in the room to bargain was a blessing within itself. The city didn't have a leg to stand on even if they did have all the evidence in the world in their possession of which they did not. She was of the opinion and vote that she didn't want to risk a blessing because the city is not due anything.

Although she is in support of whatever the city could get, Commissioner Johnson said the documentation in her mailbox lead her to believe that if the city had not accepted by August 14, 2009 that perhaps the city could have received more money.

Attorney Weeks said there was no more money; however, basically what they did was leave time on the table for the city to make a decision but no final release of anything had been signed. After she and the City Manager spoke one on one with the City Commission, they were of the opinion that they have all five in support of this and it wasn't an issue. So went back during that period in time saying "yes" it looks like we have the support of the Commission and the next step would be to put this item on for a final vote and then a release would ensue after that point.

Commissioner Johnson commented that so often the city doesn't document anything and she would hope that the city get in the habit of documenting everything in order to have something to fall back on when issues as such do arise. She said she had been working with the previous City Attorney on this issue and she doesn't know how it fell through the cracks.

Attorney Weeks said the statute of limitation had run out years before her coming to the city.

Commissioner Holmes was in possession of a document in which he asked the City Attorney to read into the record item #7.

Attorney Weeks read item #7 of the document as follows: "Continued upon the City Manager, City Attorney recommending the City Commission accept the total sum of $75,000.00 in full final settlement, the offer is rescinded if the City Commission does not

accept the sum of $75,000.00 on or before August 14, 2009". She said this is pretty much what she talked to the Commission about earlier in which there was a certain period of time for the city to go back which they did based on the executive session and everyone agreed on the $75,000.00 which is a blessing basically.

Commissioner Holmes voiced his concern regarding the City Attorney and the City Manager not bringing the document to the City Commission that they had a certain time to accept the $75,000.00 and if they didn't, the issue would go back with the possibility that the city may have received $150,000.00.

Mayor Kelley asked for further clarification on the document in question.

Attorney Weeks explained that the purpose of the document was to finalize what was agreed to at the mediation which is always done at the conclusion of all mediations.

Mayor Kelley said his concern in moving forward was making sure the city doesn't have these types of loopholes. He directed the City Manager to make sure staff is documenting whatever occurs so that there is a record and the city doesn't have these types of challenges in the future. He said he would even hope, maybe not in this legislation but if it requires separate that the city does that. He said he would support this settlement based on the City Attorney's recommendation and her statement that the statute of limitation had run and this is all the city could get.

There being no further discussion, the motion passed by a 4-1 vote.

Commissioner Holmes	No
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

5. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AMENDMENT NO. 8 TO CONTRACT NO. X1167 BETWEEN THE CITY OF OPA-LOCKA AND THE DEPARTMENT OF JUVENILE JUSTICE (DJJ) FOR CONDITIONAL RELEASE PROGRAM SERVICES FOR THE OPA-LOCKA POLICE YOUTH ACADEMY, IN THE AMOUNT OF THREE MILLION TWO HUNDRED FIFTY THREE THOUSAND TWO HUNDRED SIXTY NINE DOLLARS AND NINETY FOUR CENTS ($3,253,269.94) FOR THE PERIOD JULY 1, 2009 TO JUNE 30, 2011. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Holmes asked for an explanation on the above resolution.

Manager Finnie explained that the city had this agreement for an ongoing basis and essentially this resolution is asking that the City Commission accept the state's mandate for a reduction of the contract in the amount $43,000.00. The $3.2 Million Dollars in the resolution is a multi year arrangement through the state for DJJ. In his opinion, the City of Opa-locka would never come close to receiving the $3.2 Million Dollars. On average, the city has been accessing in the range of $200,000.00 to $300,000.00 each year.

He continued by saying that the $3.2 Million Dollars is nothing more than a 5 or 6 year line of credit which the city would draw down each year based on the number of children allocated.

Although there's a reduction in the reimbursement of this grant, Commissioner Johnson asked, how would that be offset in the current budget?

Years ago, Manager Finnie stated that the city would estimate what they thought they would or could get and those estimates historically have been under. The city is now basing the projected numbers on the actual dollars received from the state for this operating year. The city is being very conservative and has made adjustments to the DJJ program. He said if the city doesn't get reimbursed they will not endorse accepting children or fronting any cash from the city to cover this program.

Commissioner Johnson recalled the city putting money in the budget for the DJJ program and she would like to know what line item the money would come from. Additionally, she asked, since the state's budget is being decreased, would the services also decrease?

She further stated that most of the youth serviced by DJJ are not citizens of Opa-locka but of Miami-Dade County and the city is having to subsidize.

NOTE: *As per the request of Commissioner Johnson, this portion of the minutes is transcribed in verbatim.*

Manager Finnie: Yes, Commissioner. This was articulated before, we heard you loud and clear. We've reduced our involvement dramatically and everything is on a reimbursement basis. We will not spend a dime if we do not get a dime in return and that may mean a reduction in the number of children we can accept in the program. Based on where staff is, I believe we're willing to do that.

This concludes the verbatim portion of these minutes.

There being no further discussion, the motion passed by a 4-1 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	No
Mayor Kelley	Yes

6. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RATIFYING THE ACTION OF THE CITY MANAGER IN AUTHORIZING CALVIN, GIORDANO & ASSOCIATES, INC., TO DESIGN PLANS FOR THE REPAIR AND UPGRADE OF THE CITY'S PUMP STATIONS #8, #11A, #11B AND #11C IN THE AMOUNT OF ONE HUNDRED FOURTEEN THOUSAND EIGHT HUNDRED AND THIRTY-FIVE DOLLARS ($114,835.00), PAYABLE FROM ACCOUNT NO. 34-535340. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson recalled a similar resolution being on the July 22, 2009 agenda for an amount of $99,770.00 but was pulled from the agenda by the City Manager and now the resolution is being brought back for an amount of $114,835.00. She asked, what is the reason for the increase?

Manager Finnie explained that there was a mathematical error on the city's part as to the actual money owed to this firm so it was subsequently pulled from the agenda and now the resolution reflects the correct number.

In reviewing the supporting documentation to this resolution, Commissioner Johnson indicated that all the pumps stations reflected on the resolution are not a part of the documentation provided. She referred to the professional engineering services document following the resolution in the agenda packet which outlines work completed on pump stations 11C and 11A but doesn't reflect anything relating to pump stations 8 and 11B as included in the resolution.

Vice Mayor Taylor stated that the supporting document read "additional services agreement" and asked, was there anything prior to this?

Fritz Armand, Public Works Director for the City of Opa-locka came forward and stated that there was an additional agreement as stated by Commissioner Johnson for $99,770.00 which was for the initial design.

Commissioner Johnson said she already seen the one for $99,770.00 but on record it was stated that it was a human error with the numbers; therefore, she knows there's something else the city has agreed upon but it's just that the Commission doesn't have it.

Mr. Armand explained that both agreements were joined together for the total. The additional money was for services completed on pump stations 11C and 11A.

Commissioner Johnson said what she understood being said was that prior approval had been modified to include other items; however, all of those should have came back as an amendment from the Commission in order to proceed with the additional services because the money was spent as an emergency.

Manager Finnie accepted responsibility for the decision made which he believed was the right decision; however, due to the change in the criteria for the stimulus money, the project design had to be 100% complete as oppose to the 85% as stated during the trips to Washington and Tallahassee. He wanted to make sure the lift stations were included in the stimulus package at the state in July so he had to meet that deadline. Given those circumstances, he utilized Calvin, Giordano & Associates, Inc. which is allowed in the contract and the end result was that the city met the criteria. This decision was made in the best interest of the City of Opa-locka.

Commissioner Johnson agreed that the City Manager in his day to day operations should make decisions but there should be communication with the Commission on these types of issues which she should not occur again.

Vice Mayor Taylor expressed her concern relating to the additional services agreement documentation which included 11A and 11C; however, in addition to those, the resolution also reflects pump station #8 and 11B which she assumed was in the first agreement.

Mr. Armand clarified that the designing of the building itself at pump station 11C was not a part of the agreement as well as designing a generator for 11A. The first agreement had four pump stations with the exception of redesigning the building that houses pump station 11C and designing a generator for 11A which is additional work.

Commissioner Johnson corrected Mr. Armand in terms of the original agreement which only included two pump stations; however, she is speaking about what was provided by the vendor. She suggested that these types of modifications must come to the Commission and that is the reason for the difference in amounts.

Commissioner Holmes asked, wasn't this particular firm hired for the Planning Council?

Manager Finnie explained that this particular firm was hired through an RFP process to provide planning services; but the company itself has an engineering component and the contract was written in a way that allows the city to utilize their services under emergency situations.

Commissioner Holmes asked if the City Manager was saying that he hired this firm for the Planning Council and anticipated on utilizing them for other city services.

Manager Finnie said that was not his anticipation.

Commissioner Holmes asked, who made the decision to use this firm for Public Works projects?

Manager Finnie said the Public Works department used the services of this firm; however, they still have the responsibility in the planning division which is available for the planning board.

Commissioner Holmes asked, did the City Commission hire this company?

Manager Finnie added, through an RFP process and they had a multitude of services they could provide.

In terms of the stimulus issue, Mayor Kelley said one of the city challenges is having the projects shovel ready which causes the city to have things in place quicker than most cities of the same size. He said he would hope the City Manager heard his colleagues concerns about keeping them abreast of what's going on because the Commission doesn't want to see projects stopped. The challenge was communicating the need for the fast track and having to make some of the decisions so that they would not be out of the loop.

He went on to say that he had some of the same concerns with the numbers but they have done the work and he definitely doesn't want to lose the opportunity of trying to draw down the dollars through the stimulus package.

There being no further discussion, the motion passed by a 4- 1 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	No
Commissioner Johnson	Yes
Mayor Kelley	Yes

7. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, AUTHORIZING THE PAYMENT OF TWENTY FOUR THOUSAND SIX HUNDRED DOLLARS AND ZERO CENTS ($24,600.00) TO MILAGROS FARM NURSERY FOR THE PURCHASE, PLANTING AND WATERING OF TREES IN ACCORDANCE WITH THE MEMORANDUM OF UNDERSTANDING BETWEEN THE CITY OF OPA-LOCKA AND THE FLORIDA DEPARTMENT OF AGRICULTURE AND CONSUMER SERVICES, DIVISION OF FORESTRY, FOR THE CITY OF OPA-LOCKA TREE PLANTING PROJECT, PAYABLE FROM ACCOUNT NO. 41-541340. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above resolution.

Commissioner Holmes asked for an explanation on the above resolution.

Octavian Spanner, Director of Community and Economic Development for the City of Opa-locka, Florida, came forward and stated that the city applied for a second phase of the Urban Forestry Grant administered by the Department of Agriculture. The city was awarded $10,000.00 with a matching commitment of 50% and the city signed an agreement with the Department of Forestry to execute this contract. The city has followed due process obtaining quotes as required and Milagros Farm Nursery was the lowest response as well as the only company willing to work with a local vendor.

Vice Mayor Taylor asked for clarification on the amount.

Mr. Spanner explained that the $24,600.00 was the total amount of which $10,000.00 was grant monies and the city would be responsible for the $14,600.00 which would be for purchasing, planting and watering of the trees.

Commissioner Johnson suggested that the quality check be enhanced because some of the trees are above ground, leaning or dead. Although, Opa-locka is a tree city she has yet to see an emerald. The city is supposed to have a campaign with the schools on these trees and it hasn't happened.

She continued by saying that the City Manager promised trees along the canal at the Homeowners Meeting.

Mayor Kelley said one of the biggest concerns is having a campaign of trees along with the maintenance. He said he would like to see a campaign announcing the trees as well as a layout.

There being no further discussion, the motion passed by a 5-0 vote.

Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Tydus	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

10. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ACCEPTING THE PROPOSAL FROM CIVICPLUS IN RESPONSE TO RFP NO. 09-0327 FOR CITY WEBSITE DESIGN SERVICES; FURTHER AUTHORIZING THE CITY MANAGER TO ENTER INTO AND EXECUTE AN AGREEMENT WITH ICON ENTERPRISES INC. OF KANSAS D/B/A CIVICPLUS, TO PROVIDE WEBSITE DESIGN SERVICES TO THE CITY OF OPA-LOCKA, FLORIDA, IN A CONTRACT FORM ACCEPTABLE TO THE CITY ATTORNEY. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

Commissioner Johnson expressed her concern relating to the amount of outsourcing from the IT Department.

Manager Finnie explained that the IT Department is currently in the midst of some major implementation with the records management system and with issues relating to the police department, hurricane, and across the board. This contract will assist in getting a designed website, but most importantly a webmaster in order for the city's website to be sophisticated. The city's IT Department is good but he doesn't think their expertise. The

Website for Opa-locka is in many cases how people first come in contact with the city and they would like to upgrade it.

Commissioner Johnson suggested that the city focus on education so the employees are educated on the process because she is tired of seeing so much money be wasted on others when the current personnel could go out and get the skills to get the job done.

Vice Mayor Taylor said she noticed that the amount of money was not included in the resolution and perhaps it was overlooked.

Manager Finnie stated that the supporting documentation reflects the amount.

Both Vice Mayor Taylor and Commissioner Johnson agreed that the amount should be included in the resolution along with the account number.

Vice Mayor Taylor disagreed with the resolution at this time and suggested that the city put the money at its best use because a website design would not be a good use for it right now.

Taking into consideration the concerns from Commissioner Johnson and Vice Mayor Taylor, Manager Finnie thought it would be appropriate to defer the above resolution.

Mayor Kelley said the item is still under discussion.

Commissioner Johnson said she was not in support of this resolution and suggested that the city train a current staff member of the IT Department to perform these services.

Commissioner Tydus stated that she was of the conviction that the website represents the city. She spoke in favor of upgrading the city's website because presentation is very important and will get the city a lot further. This particular amount is not excessive for the type of website she is trusting this company is going to provide; therefore, she is in favor of the city being well represented now as oppose to in the future.

Commissioner Holmes agreed with Commissioner Tydus.

Mayor Kelley agreed that the city needs to upgrade its website which he mentioned on numerous occasions in the past because the current website is antiquated and not user friendly. He expressed his concerns relating to the hosting and the quality of services.

Bernie Larallde, IT Director for the City of Opa-locka came forward and stated that the web hosting is a yearly fee and it is up to the Commission when they chose to break ties with them. The fee includes the technical support, design work and assistance.

Mayor Kelley said he was in support of the service for a website design for the city.

Vice Mayor Taylor reiterated that she didn't disagree with the design of the website; however, she didn't think it should be done now.

Manager Finnie added that with the stimulus money received, it will be web based as to how the city manages those assets. There's a whole arena of things the city has to do on an internet basis to manage those assets. He said people would be looking at the City of Opa-locka website and that's the reason staff is recommending the upgrade.

He continued by saying that the city doesn't have the ability now to design a website; however, he can certainly start a process to train someone to prepare them for the future to take over this responsibility.

He further said the city's website doesn't reflect the City of Opa-locka as well as it should.

There being no further discussion, the motion passed by a 3-2 vote.

Commissioner Holmes	Yes
Commissioner Johnson	No
Commissioner Tydus	Yes
Vice Mayor Taylor	No
Mayor Kelley	Yes

12. NEW ITEMS:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RATIFYING THE ACTION OF THE CITY MANAGER AND AUTHORIZING RAINBOW ENTERPRISES, INC. TO REMOVE DEBRIS RELATED TO THE DEMOLITION AND CLEARANCE OF THE OLD CITY WATER PLANT IN THE AMOUNT OF TWENTY ONE THOUSAND NINE HUNDRED AND THIRTY DOLLARS ($21,930.00) PAYABLE FROM ACCOUNT NO. 32541520. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

It was moved by Vice Mayor Taylor, seconded by Commissioner Johnson to pass the above resolution.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

12-2: A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RESCINDING ALL UNAUTHORIZED BONUSES TO CITY STAFF FROM OCTOBER 1, 2008 THROUGH SEPTEMBER 30, 2009 AND FURTHER DIRECTING THE INTERIM CITY MANAGER TO SEND DEMAND LETTERS TO CITY STAFF FOR THE RECOVERY OF UNAUTHORIZED

UNBUDGETED CITY FUNDS AND HOLD PERSONALLY RESPONSIBLE FOR THE DISTRIBUTION. *Sponsored by D.J.*

The above resolution was read by title by Attorney Weeks.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above resolution.

Although she received her documentation late, Commissioner Johnson expressed her concern in terms of the amount of monies spent on unauthorized bonuses and promotions. Additionally, she doesn't see any line item in the budget for bonuses and she is concerned as to how the taxpayer's money is spent. She directed the City Clerk to provide a copy of the documentation to the Commission.

She continued by voicing her displeasure with the unauthorized spending on bonuses and promotions which must stop because this is not the time or element for giving out bonuses.

Vice Mayor Taylor asked Manager Finnie if he is giving unauthorized raises and bonuses to anybody.

Manager Finnie explained that he was just not giving raises to anybody; however, he has made salary adjustments to individuals who may have been promoted to certain positions and have received raises in those positions. But in many of those cases the city has saved money because he has taken individuals off an hourly payroll and put them on a fixed payroll which in the long run saves money. Again, he adjusted some salaries in the police department and he'll have to sit with the Commission individually and get an identification of what a bonus is to make sure they have the same definition. As a City Manager, he believes he made some financial decisions which are in the best interest of this city.

He went on to say that he would like to sit down with the Commission to discuss these adjustments.

Vice Mayor Taylor said that this resolution is suggesting that the City Manager send a demand letter to everyone who's salary was adjusted and that's not fair to put those people in that position when it shouldn't have to be in the first place. The city has already put a freeze on everything in an effort to stay out of a repeated financial emergency.

Manager Finnie said these are very serious issues and he would be more than happy to have an internal inquiry to address it.

Vice Mayor Taylor reiterated that the resolution is asking that the City Manager recover the unauthorized unbudgeted city funds. Due to the economic hardship and the Commission putting a freeze on everything, the City Manager should not be giving anybody anything and what is done for one must be done for all. If the City Manager is not prepared to adjust everyone, then he shouldn't adjust anyone.

She continued by saying that this resolution is basically saying what the City Manager gave he has to take back and that makes bad relations between the Commission and the employees when it didn't have to be in the first place.

Commissioner Johnson said the city cannot even mess with contracted employee's salaries because they are protected. This resolution is not addressing adjustments but those individuals who received $10,000.00 or $5,000.00 and those are the individuals she is speaking about. She said she knew the difference between adjustment and bonuses and the Human Resources Director should know the difference too. She asked, what line item in the budget is for bonuses?

Manager Finnie said there is no category in the budget for bonuses.

Commissioner Johnson continued to voice her frustration with the City Manager giving individuals bonuses after the Commission passed a resolution for a hiring freeze.

Commissioner Holmes said the employees are upset by the way things are being handled in this city.

From a legal perspective, Mayor Kelley asked Attorney Weeks how enforceable is this resolution because it is going back to the former City Manager?

Attorney Weeks responded that there are certain duties the City Manager has pursuant to the Charter and to the extend the Commission would consider instituting a lawsuit against the former City Manager for instance because she gave out bonuses not consistent with her obligations to comply with the budget and so forth then the Commission could entertain that. However, she doesn't know that it would necessarily be a successful pursuit but certainly the Commission could entertain that. This would be an issue as to whether the Commission would want to pursue that but there are a lot of underlying issues to consider.

After listening to the concerns, Mayor Kelley said he had some of the same concerns although he doesn't have the documentation but he is trying to figure out the implementation of something and how it would work in terms of sending a demand letter and what would happen if there is no response. He agreed with Vice Mayor Taylor in terms of what you do for one must be done for all which is the challenge because some folks haven't been done like others and that's the dilemma as to why folks are unhappy.

Commissioner Tydus said she could not support the resolution at this particular time. She said she was in favor of the intent but not the provisions in the resolution because she wasn't clear on issues relating to holding the City Manager personally responsible which could be a liability and defining bonuses. The City Manager has indicated that there were no bonuses just adjustments that these employees were given for their new positions and if that is the case, she doesn't see where the City Manager was acting out of round of responsibility. She has yet to hear where the hiring freeze has not been obliged at all. She asked, has there been any hiring since the hiring freeze was adopted by the Commission?

Manager Finnie said the resolution was for a limited hiring freeze with the exception of police officers and crossing guards.

Commissioner Tydus said she could not be in favor of this resolution at this time due to her concerns because she was not privy to the information Commissioner Johnson had which would be critical in her decision making.

Commissioner Johnson deferred the resolution until further discovery could be done and the Commission could be provided with a copy of the information.

Commissioner Holmes withdrew his second and Commissioner Johnson withdrew her motion. The above resolution was deferred to the next commission meeting.

13. PLANNING & ZONING:

A. HEARINGS:

B. APPEALS:

14. ORDINANCES/RESOLUTIONS/PUBLIC HEARING:

A. FIRST READING:

Mayor Kelley stated that Commissioner Holmes requested a wording change to the following ordinance and the City Attorney referenced the fact that the Commission needed to state the wording.

Attorney Weeks added that Commissioner Holmes could state the wording change following the reading and motion on this ordinance. Because it would be a substantial change from the original, the ordinance would have to go back for a first reading again.

Commissioner Holmes stated that this ordinance deals with the sewer rates and has nothing to do with the water rates. The water rates ordinance is currently on the agenda for second reading.

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; AMENDING CHAPTER 21, ARTICLE II, SECTION 21-77 OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES, ENTITLED "SCHEDULE OF RATES GENERALLY" BY AMENDING PROVISIONS RELATED TO WATER AND SEWER RATE INCREASES FOR FISCAL YEARS 2008-2009, 2009-2010, 2010-2011, 2011-2012 AND 2012-2013; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE. *Sponsored by T.H.*

The above ordinance was read by title by Attorney Weeks.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance on first reading.

Commissioner Holmes proposed an amendment to the ordinance to remove the word "water" so that the ordinance only addresses the sewer rates.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to amend the above ordinance.

While the Commission can amend the ordinance, Attorney Weeks suggested that the Commission bring it back again for another first reading because there would be a substantial change.

Commissioner Johnson directed the City Attorney's attention to item 14B2 on the agenda which was a second reading ordinance dealing with the water rates.

Mayor Kelley said that basically the City Attorney is saying that the item has to be deferred until the next meeting.

Attorney Weeks explained that the Commission could make the change but it would need to come up again as a first reading. Initially Commissioner Holmes talked to her about this item and it looks like there are two items on the agenda; one dealing with water only and the other dealing with water & sewer. She advised that if the Commission wanted to deal with the sewer by itself they would have to bring it back for first reading and cannot just take it off because it is changing substantially what the city publicized it as.

Commissioner Holmes stated that this is the first reading for the sewer ordinance and the water ordinance was passed on first reading at the last commission meeting. The only thing is that this ordinance for the sewer somehow got mixed in with the water; however, the water has already been passed on first reading and is on the agenda for second reading. During the last commission meeting, he thought the ordinance addressed both water and sewer, come to find out it was only for the water. He then requested an ordinance to address the sewer rate increases which is the purpose of the ordinance.

Vice Mayor Taylor asked, is the first reading ordinance advertised?

Attorney Weeks replied, no, a first reading ordinance is not advertised.

Vice Mayor Taylor said that Commissioner Holmes is suggesting that the word "water" got in the ordinance by error.

Commissioner Holmes said his instruction was to bring an ordinance for the sewer rates.

Attorney Weeks said this ordinance has to come back as a first reading for sewer and that's what needs to happen to do this properly.

Commissioner Johnson informed the City Attorney that the ordinance will not be posted in the newspaper until the Commission votes on it for first reading.

Attorney Weeks agreed with Commissioner Johnson but because there was substantial change in the ordinance, it would have to come back as first reading in order to do it properly.

Commissioner Tydus asked, is it Florida Statutes that makes reference to substantial changes?

Attorney Weeks said it was not the Florida Statutes but the body of case law and it could be challenged legally if things are not noticed properly. With this, the Commission should bring back the sewer ordinance by itself and go forward.

Mayor Kelley said he was in support of what Commissioner Holmes is trying to accomplish with the sewer ordinance but in listening to the City Attorney, the Commission cannot move forward with the first reading because it's not posted as sewer only otherwise the city will leave itself open for a legal challenge.

Attorney replied, yes.

Commissioner Holmes expressed the importance of having this ordinance final adoption prior to going into the new budget on October 1, 2009. The Commission in the past has amended ordinances on many occasions.

Mayor Kelley asked for clarification in terms of having the item passed and the budget going into effect on October 1, 2009.

Manager Finnie explained that up until the sewer schedule is changed, the city will go in with the scheduled increase in the beginning of October.

Mayor Kelley said that the concept is not to go in with mismatch numbers for the water and sewer but to have both in place prior to October 1, 2009 when the new rates are scheduled to take place.

Manager Finnie said this will be complicated and he will be bringing another companion item at the next commission meeting.

Mayor Kelley asked, what the law indicates in terms of getting two meetings in to have the sewer ordinance coincide with the budget.

Attorney Weeks said the meeting could be properly noticed and the Commission could have a special meeting on the sewer ordinance and have the 10 day requirement for advertisement.

Mayor Kelley recommended having the special meeting to consider the sewer ordinance on September 21, 2009 30 minutes prior to the Second Budget Hearing because he doesn't want to get into the new budget with two different schedules.

Attorney Weeks said the Commission could try to calendar it as such and yes, this ordinance could be considered outside of a regular commission meeting. She suggested

that the Commission allow her to work with the City Clerk and she make sure that it is done legally.

Mayor Kelley preferred having the Special Meeting on September 21, 2009 prior to the Second Budget Hearing possibly at 4:30 p.m.

Attorney Weeks said she would make sure it doesn't present any issues which she doesn't believe it would and then she will work with the City Clerk to get it scheduled for that date.

Mayor Kelley asked Commissioner Holmes if he was in agreement of having this item brought back at a special meeting on September 21, 2009 since he is the sponsor.

Commissioner Holmes said he didn't have a problem with Mayor Kelley's recommendation.

The motion and second on the above ordinance were withdrawn.

B. SECOND READING/PUBLIC HEARING:

1. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; AMENDING CHAPTER 2, ARTICLE I, SECTION 2-8.4 OF THE OPA-LOCKA CODE OF ORDINANCES ENTITLED "SEARCH COMMITTEE ESTABLISHED" BY PERMITTING THE CITY COMMISSION TO SERVE AS THE SEARCH COMMITTEE; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on July 22, 2009). *Sponsored by D.J.*

The above ordinance was read by title by Attorney Weeks.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Commissioner Holmes to pass the above ordinance.

There being no discussion, the motion passed by a 5-0 vote.

Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Mayor Kelley	Yes

2. AN ORDINANCE OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA; AMENDING CHAPTER 21, ARTICLE II, SECTION 21-77 OF THE CITY OF OPA-LOCKA CODE OF ORDINANCES, ENTITLED "SCHEDULE

OF RATES GENERALLY" BY AMENDING PROVISIONS RELATED TO WATER RATE INCREASES FOR FISCAL YEARS 2008-2009, 2009-2010, 2010-2011, 2011-2012 AND 2012-2013; PROVIDING FOR INCORPORATION OF RECITALS; PROVIDING FOR CONFLICT AND REPEALER; PROVIDING FOR SEVERABILITY; PROVIDING FOR AN EFFECTIVE DATE (first reading held on July 22, 2009). *Sponsored by T.H.*

The above ordinance was read by title by Attorney Weeks.

Mayor Kelley opened the floor for a public hearing. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Holmes, seconded by Commissioner Johnson to pass the above ordinance.

Following a brief comment by Commissioner Holmes relating to the sewer ordinance, the motion passed by a 5-0 vote.

Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Commissioner Holmes	Yes
Commissioner Johnson	Yes
Mayor Kelley	Yes

C. RESOLUTION/PUBLIC HEARING/COMMENT:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, ADOPTING THE CITY OF OPA-LOCKA REVISED EVALUATION AND APPRAISAL REPORT (EAR) OF THE CITY'S COMPREHENSIVE PLAN; PROVIDING FOR TRANSMITTAL OF THE EVALUATION AND APPRAISAL REPORT TO THE SOUTH FLORIDA REGIONAL PLANNING COUNCIL IN ACCORDANCE WITH 163.3191, FLORIDA STATUTES. *Sponsored by C.M.*

The above resolution was read by title by Attorney Weeks.

Mayor Kelley opened the floor for a public hearing/comments. There being no persons to speak on the public hearing, the public hearing was closed.

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the above resolution.

There being no discussion, the motion passed by a 4-0 vote.

Vice Mayor Taylor	Yes
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Commissioner Holmes	Out of room

Mayor Kelley	Yes

15. ADMINISTRATION:

CONSENT AGENDA:

1. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, SUPPORTING THE HOMEOWNERS' DEFENSE ACT OF 2009, TO ADDRESS THE GROWING CRISIS IN THE AVAILABILITY AND AFFORDABILITY OF HOMEOWNERS' INSURANCE. *Sponsored by J.K.*

2. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, OPPOSING AMENDMENT 4 ON THE 2010 GENERAL ELECTION BALLOT, WHICH PROPOSES AN AMENDMENT TO THE FLORIDA CONSTITUTION REQUIRING THAT EVERY AMENDMENT TO A CITY OR COUNTY COMPREHENSIVE PLAN BE SUBJECT TO A VOTE OF THE RESPECTIVE CITY OR COUNTY ELECTORATE. *Sponsored by J.K.*

3. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, EXPRESSING SUPPORT FOR THE PARENTS, POLICE AND PREACHER COMMUNITY SERVICE PROGRAM. *Sponsored by D.J.*

8. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RATIFYING THE ACTION OF THE CITY MANAGER IN ENTERING INTO AND EXECUTING AMENDMENT NO. 3 TO DEP AGREEMENT NO. LP6072 BETWEEN THE CITY OF OPA-LOCKA AND THE STATE OF FLORIDA DEPARTMENT OF ENVIRONMENTAL PROTECTION (DEP) FOR THE N.W. 139TH STREET STORMWATER DRAINAGE / ROADWAY PROJECT. *Sponsored by C.M.*

9. A RESOLUTION OF THE CITY COMMISSION OF THE CITY OF OPA-LOCKA, FLORIDA, RATIFYING THE ACTION OF THE CITY MANAGER IN ENTERING INTO AND EXECUTING AMENDMENT NO. 4 TO DEP AGREEMENT NO. LP6071 BETWEEN THE CITY OF OPA-LOCKA, FLORIDA AND THE STATE OF FLORIDA DEPARTMENT OF ENVIRONMENTAL PROTECTION (DEP) FOR THE N.W. 128TH STREET STORMWATER DRAINAGE / ROADWAY IMPROVEMENT PROJECT. *Sponsored by C.M.*

It was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to pass the consent agenda resolutions 1, 2, 3, 8 and 9.

The motion passed by a 4-0 vote.

Commissioner Holmes	Out of room
Commissioner Johnson	Yes
Commissioner Tydus	Yes
Vice Mayor Taylor	Yes
Mayor Kelley	Yes

A. CITY MANAGER'S REPORT:

Manager Finnie updated the Commission on the Sherbondy Park project which he would come back in hopefully next month with an announcement on where the city is in the process in terms of timing, demolition and preparing to move the project forward; Segal Park infrastructure; and Old Water Plant Water and Sewer Atlas which he expects the RFP to be released the following week.

He continued by announcing that Captain Miguel Galvez will receive recognition for being recognized as Officer of the Month for September 2009. This presentation would take place in Washington at the Law Enforcement Officers Memorial Fund.

He reported that staff has done an outstanding job this year in raising capital for the City of Opa-locka. While the city has several grant awards that they have not heard from as of yet, they have already collected $1,000,000.00 in grant awards.

Manager Finnie reported on the concern relating to Power Supermarket and the commercial activity on 22nd Avenue slightly south of the railroad tracks.

Vice Mayor Taylor said the area where the store is located has been an albatross for a long time and it is difficult to see that the city doesn't have any options because it is a public nuisance. She suggested that the City Manager use the children because children walk through there and that area is a drug haven. The stores on the South Side and North Side, those two areas represent the City of Opa-locka and that in of itself is enough to keep a task force there and make it quite uncomfortable regardless of who change owners. The city has to be able to do something because other cities do and to hear it seems as though they are dragging their feet on that particular area.

She continued to thank staff for cutting the area of NW 135th Street and the NW 37 Avenue/Lejeune Connector.

She suggested that the City Manager bring back the Gulf Course Drive property because she would like to see that as forest or park which would also create a workforce initiative and jobs.

She directed the City Manager set up a meeting with the Homeless Trust to create a citywide homeless plan and possibly establish a small task force which she would like to chair to address the homeless situation in Opa-locka. She invited the Commission to see her if they would like to have someone help chair on that task force.

She further directed the City Manager to instruct the Finance Department to bring back a rebate for the citizens of Opa-locka that pay water; a rebate check for at least a $100.00 to $200.00 and she would like for this to be brought back within a month's period.

Vice Mayor Taylor expressed her concern relating to the lot near Segal Park and suggested that the lot is maintained on a regular basis.

Commissioner Johnson directed the City Manager to bring back a monthly report on the progress of Prime Source Mortgage in terms of working with the city on foreclosures. She requested copies of all contracts/agreements the City Manager authorized and a hard copy of all grants awarded to include the title and amount of each.

She continued to say that she spoke to the manager at Wachovia Bank in Opa-locka regarding flooding in the area and that must be addressed.

She directed the City Manager to make sure all his key staff members are in attendance at the commission meetings because she doesn't see a couple of those key staff members in attendance.

In terms of Power Supermarket, she stated that former attorney Joseph Geller worked with Attorney Weeks in finalizing the Nuisance Abatement Ordinance and that legislation has what the city needs to address these types of issues. She suggested that the City Manager consult with the City Attorney so that the city can do what it needs to do to address this problem.

Commissioner Johnson requested that the lawn service come back in house and she wants and any other contracts be discontinued. The $200,000.00 spend could employ many citizens currently unemployed.

She said the city can do what other city's are doing by purchasing foreclosed homes within the city and putting people back to work by fixing the homes. Then the homes are sold back to the residents.

She stated that it was brought to her attention that there were errors with some of the recent RFP's and she wants to make sure RFP's are posted properly.

She further expressed her concerns with the large quantity of signage on the medians; the lack of quality check on NW 27th Avenue and NW 22nd Avenue near the SR9 corridor because the signage is deplorable; not seeing the street sweeper put into use throughout the city which she needs to occur.

Commissioner Tydus asked, what is the status of the RFP for lawn services for alleyways and other public properties?

Manager Finnie explained that staff was instructed to provide lawn services in house and he is trying to figure out how to bring those services in house. He said he would provide an update at the next commission meeting.

Commissioner Tydus asked, was that the consensus of the commission because in her opinion the Public Works Department is over tasked?

Manager Finnie said he would present two items to the commission and then go from there based on their directive.

Commissioner Tydus asked, what is the status of the former lawn service provider?

Manager Finnie stated that the former lawn service provider was no longer working for the city; the vendor received a brief extension to provide services in August.

Mayor Kelley expressed his concerns relating to the lawn services because the instructions were clear. The City Manager was instructed to issue an RFP for lawn services and to utilize the same vendor while the process was taking place. He said he was frustrated to hear the concerns from citizens about the alleyways. The RFP would not exclude My Lawn Service or anyone else from submitting a proposal, it just allows for the city to go through the process. The intent was never to bring the lawn services in-house because the rangers would not be able to do the work.

He continued by saying that the RFP for lawn services has yet to go out and the grass continues to grow high. He had seen Public Works staff cutting the grass throughout the city and it's challenging. The city is going through a dilemma because the directive of the Commission was not followed.

Commissioner Tydus thanked staff for the progress in issuing warnings for chicken violations; however, she is concerned with the process in identifying ownership if there is no coupe in the yard. She asked, does Miami-Dade County provide pick up service?

Manager Finnie said that Miami-Dade County will assist but the city has to identify the domicile of the chickens. There is a follow-up on a monthly basis at 5:00 a.m. to listen to the noise in order to identify the locations of the chickens.

Commissioner Tydus expressed her concerns in terms of how the chickens were picked up.

Manager Finnie said he would like to sit down with staff to discuss the options of capturing the chickens.

Commissioner Tydus stated that she was informed by a resident regarding raises given and the statement was made that the City Manager, City Clerk, and a Commissioner were in a meeting. As a result of that meeting the clerk's staff was given raises. She said the question was asked to her, therefore, she would like to know if the statement was true.

Manager Finnie said that there were on-going discussions for the last few months about raises in that area but the City Clerk's staff had not received raises.

Commissioner Tydus asked, were there any raises given in the City Clerk's Office?

Mr. Finnie replied, no.

Commissioner Tydus said she appreciates the City Manager responding to her inquiry as it relates to the Opa-locka/Hialeah Flea Market which validates her concern and the fact that since 2006 the Flea Marker has owed the city over a quarter of a million dollars in delinquent occupational license fees. To date they owe Three Hundred Twelve Thousand Seven Hundred Dollars and have not paid one payment since those payment

arrangements were adopted by the commission which brings deep concerns. The fact that the city lowered the actual amount owed was in an effort to work with them.

She directed the City Attorney to prepare a resolution initiating legal proceedings for a breach of agreement/contract. In previous discussions, the commission spoke about to collecting monies from police officers who breached their contracts; therefore, she would like a resolution prepared initiating legal proceedings.

Commissioner Holmes requested that the City Manager provide documentation to the statement regarding the city receiving $2.1. million dollars in grant money. This information should be provided by12:00 p.m. on Friday, September 11, 2009.

He expressed his frustration in terms of the citizens' complaints concerning the high water bills. The purpose for the water & sewer ordinance is to stop the increases effective October 1, 2009. The city must put something in place to see what impact this would have on the budget and to make sure there isn't a deficit.

He further stated that he cannot continue to allow the City Manager to not do what he is suppose to do because the commercial contract with Waste Management was to go out for an RFP but instead it was extended for an additional year. The City Manager had the month of August to come up with a plan; but the citizens continue to complain about the high water bills.

Commissioner Holmes stated that he had lost all confidence in the City Manager and although he may be a nice person when it comes down to running a city his performance is poor.

He continued to say that the City Clerk had requested on several occasions for information from the City Attorney's Office to keep on file but she still had not received it. In terms to the $300,000.00 increase in the City Attorney's budget, he asked, where is the money coming from when there's a decrease in revenues?

He further expressed his concern relating to the bonuses given to certain employees and continued by inquiring about several employees who are valuable to this city.

Commissioner Johnson suggested that the City Manager not bring back a resolution for in-house lawn services because she would just wait until the RFP process is completed.

She asked, what is the process for employees who are non-bargaining employees not protected under AFSCME for the increase that a bargaining employee normally receives?

Manager Finnie stated that all employees with the exception of directors received an increase when the commission put the 3% COLA increase in the budget. When the commission put money in the budget for increases that's normally how staff will receive an increase, unless there's a change in position.

Commissioner Johnson asked, did all employees get the increase?

Mr. Finnie replied, yes.

Mayor Kelley informed the City Manager of the sign at the entrance of Ingram Park which is faded. Additionally, he received a response regarding the property on Washington Avenue indicating it was cleaned and waiting to go before Miami-Dade County demolition; however, he drove by the property and it was not cleaned.

He further said he would meet with the City Manager regarding the funding available for services for the homeless.

Mayor Kelley mentioned that is he challenged in how the maintenance of alleyways will be addressed. The citizens' concerns were not addressed and he would hope that the City Manager respond to the Commission in writing in order to share that information with the citizens on those issues that have come before them during that meeting.

B. ACCOUNTS PAYABLE:

Ezekiel Orji, Finance Director for the City of Opa-locka came forward and stated that the city is paying its bills on time.

Commissioner Johnson requested an accounts payable report be provided to the Commission on a monthly basis.

Dr. Orji agreed to provide the Commission with the information requested.

16. OFFICIAL BOARD REPORTS:

Charter Reivew Board Minutes of May 7, 2009 were provided as a part of the agenda packet to the Commission.

17. CITY ATTORNEY'S REPORT:

Attorney Weeks stated that the commission should have received an emailed letter from Michael Burke who is representing the city in the case of Steven Barrett vs. the City of Opa-locka. Mr. Burke put forth an offer received from the other side, and in addition to that he is seeking a shade meeting as mentioned in the letter to be held on September 23, 2009. Keeping in mind what Mayor Kelley suggested in terms of not interrupting the commission meeting, she is requesting that the shade meeting is held at 6:30 p.m. and end at approximately 6:55 p.m. She read the following into the record: Pursuant to Florida Statues 286.0118 an Attorney Client Session will be held at a special meeting of the City of Opa-locka commission on Wednesday, September 23, 2009 at 6:30 p.m. in the City Commission Chambers to consider the settlement negotiations in the following case Steven Barrett vs. the City of Opa-locka case number 06-04499CA23 and in attendance will be the Mayor Joseph Kelley, Vice Mayor Myra Taylor, Commissioner Timothy Holmes, Commissioner Rose Tydus, Commissioner Dorothy Dottie Johnson, City Manager Bryan K. Finnie, City Attorney Burnadette Norris, Outside Legal Counsel Michael T. Burke, and Court Reporting Services. The Attorney Client Session will begin

at 6:30 p.m. and end at approximately 6:55 p.m. She further said she would forward the appropriate notice to the City Clerk.

As it relates to the concerns from Alvin Burke and Johnnie Mae Greene, Attorney Weeks said they may have been misinformed about some information. She continued by addressing Mr. Burke's concern relating to the Planning Council.

She further stated that Commissioner Tydus pointed out the fact that the Planning Council is not on a schedule like some of the other boards because they meet for specific items. The City Manager and staff is moving forward diligently on getting the EAR approved which deals with the Comprehensive Plan. She is unclear to what extent Mr. Burke believes there are issues to meet on because right now there aren't any issues to go before the Planning Council.

With regards to the statement by Johnnie Mae Greene relating to insurance paid for the City Attorney, Attorney Weeks said they are paying for their own insurance. She said what may have been referred to in the City Attorney's budget are other items dealing with Risk Management for insurance which the City Attorney's staff doesn't benefit from.

She continued by saying that she had been meeting with the City Clerk and City Manager regarding the agenda items since the commission passed the resolution. She said if Commissioner Holmes received an e-mail from the City Clerk that the City Attorney prepared an agenda for a meeting that is not true.

She further stated that after meeting with the Commission on city charter issues she is looking forward to another meeting to finalize those issues and move forward.

Several years ago the court mandated the Commission in terms of deferred compensation. Commissioner Johnson requested an update in writing on the court mandate several years ago in terms of the deferred compensation.

Commissioner Holmes stated that when the City Attorney was first hired she indicated she didn't want any benefits from the city; however, she has a city laptop.

Mayor Kelley stated that he had asked for the Hardship resolution a while back and he anticipated it would have been prepared by now.

18. CITY CLERK'S REPORT:

Clerk Irby read thank you cards from Dr. Gloria Williams, Edwin Whitehead, and the Newton Family.

She read a certificate from the Florida League of Cities recognizing the City of Opa-locka for participating in the Building Citizen in the Community Back to Basics Champaign.

She further mentioned that over 600 people were tested and trained for the census and they are in the process of hiring those individuals.

After attending the Charter Review Board on a regular basis, Commissioner Tydus said that the charter provide for the City Attorney, City Clerk and City Manager serve as ex-officio members of that board; however, she had not seen the City Clerk in attendance at the last several meetings. She asked, as an ex-officio member, why hasn't the City Clerk attended meetings?

Clerk Irby responded that during the time she was clerking the board there was controversy going on; however, since the City Manager has appointed a board clerk in accordance to the charter, she can attend the meetings.

19. MAYOR/COMMISSION REPORT:

Commissioner Johnson reported that she participated in the Back to School events and provided books bags to Nathan B. Young Elementary School and Dr. Robert B. Ingram Elementary School compliments of her church. She stated that there is a strong possibility she may not be in attendance at the next Regular Commission Meeting.

Vice Mayor Taylor asked Mayor Kelley if there was anything the commission could do to have the commission meetings last no longer than two hours.

Mayor Kelley stated that every member of the Commission was elected and he had to allow everyone an opportunity to speak.

Vice Mayor Taylor congratulated Captain Galvez on his commendation.

Commissioner Holmes said he still hadn't received a response in terms of trying to give the citizens some relief on their water bills.

Mayor Kelley reported his attendance at the Florida League of Cities workshop and the Miami-Dade County League of Cities Meeting. He said he is continuing to work on issues dealing with the budget in terms of Miami-Dade County, meeting with Community Based Organizations to make sure they are prepared in the event of a natural disaster, and looking for funding for the city to move forward.

20. OFFICIAL BOARD APPOINTMENTS:

Commissioner Timothy Holmes reappointed John Riley to serve on the Charter Review Board.

21. ADJOURNMENT:

There being no further business to come before the City Commission, it was moved by Commissioner Johnson, seconded by Vice Mayor Taylor to adjourn the meeting at 11:21 p.m.

ATTEST:

MAYOR

CITY CLERK